



Terms and Conditions – Finunique Small Pvt Ltd

By accessing, registering on, or using the website, mobile application, or services of FinUnique Small Pvt. Ltd. (“FinUnique”, “Company”, “We”, “Us”), you (“Partner”, “Retailer”, “Distributor”, “API Partner”) agree to be legally bound by these Terms & Conditions.

Appointment as Retailer / Partner / Distributor / API Partner

These Terms and Conditions (“Terms”) govern the commercial and operational relationship between FinUnique Small Pvt. Ltd. (“Company”, “FinUnique”, “We”, “Us”) and the individual or entity appointed as a Retailer, Partner, Distributor, or API Partner (hereinafter collectively referred to as the “Partner”).

By accepting these Terms, the Partner agrees that this document, along with any policies, guidelines, annexures, or communications issued by FinUnique from time to time, constitutes the entire and binding agreement between the Company and the Partner.

1. Operation of Retailer / Distributor / API Partner Outlet

1.1 Rendering of Services- During the term of this Agreement, the Retailer / Distributor / API Partner (hereinafter referred to as the “Partner”) shall provide and facilitate the digital services offered by FinUnique Small Pvt. Ltd. (“Services”), including but not limited to BBPS, Domestic Money Transfer (DMT), AEPS, and such other services as may be enabled by the Company from time to time.

The Partner shall render the Services only through authorized personnel, employees, agents, or representatives and strictly through the official platform, software, or APIs provided or approved by FinUnique.

1.2 Marketing and Promotion – The Partner shall market, promote, and offer only those services which are explicitly authorized and enabled by FinUnique Small Pvt. Ltd. from time to time.

The Partner shall not have any automatic or implied right to market, sell, bundle, or promote:

- Any services offered by other Partners;
- Any services of third-party or external service providers;
- Any product or service not approved or enabled on the FinUnique platform.

In the event of addition, modification, or introduction of any new service, FinUnique Small Pvt. Ltd. may notify the Partner through its portal, website, email, or any official communication channel. The Partner shall be permitted to offer such services only after receiving explicit approval or activation from the Company.

1.3 Infrastructure and Equipment Requirements – The Partner shall, at their own cost, acquire and maintain all necessary infrastructure and equipment required to provide Finunique Small Pvt Ltd services. This includes computers, peripherals, internet or broadband connectivity, mobile devices, or any other device compatible with the Company's software/services. For MPOS or other application-based services, the software shall be installed only on devices registered with the Company. The Partner must prominently display Company signage, logos, and other branding materials at the outlet, in accordance with the Company's instructions.

1.4 Transaction Integrity and Fraud Prevention – All Services must be provided strictly through Finunique Small Pvt Ltd's portal or software. Offline transactions, fake receipts, or any fraudulent activity are strictly prohibited. Any Partner found engaging in malicious, fraudulent, or unauthorized activity, including offline transactions, shall be liable for civil and criminal action under applicable laws, including the Indian Penal Code, 1860, and the Criminal Procedure Code, 1973.

1.5 Licensing, Permits, and Approvals – The Partner shall obtain all necessary licenses, permits, and approvals required for operating the outlet and providing the Services. All costs, including application fees, license fees, statutory charges, and applicable taxes, shall be borne solely by the Partner.

1.6 Business Hours and Outlet Availability – The Partner shall ensure that the outlet remains open during normal business hours or during such hours as may be specified by Finunique Small Pvt Ltd, and in compliance with all applicable laws and regulations. Any change in the business hours of the outlet shall be made only with the prior approval of the Company.

1.7 Conduct of Operations and Compliance – The Partner shall use the outlet exclusively for providing the Services. The Partner shall not allow, display, or promote any illegal, offensive, obscene, misleading, defamatory, libelous, vulgar, or otherwise prohibited content at the outlet. Any activity that is immoral, unlawful, or against public interest is strictly prohibited.

1.8 Training, Technology Support, and Promotional Materials – Finunique Small Pvt Ltd may, at its discretion, provide training manuals, technology support, ongoing guidance, and promotional materials such as brochures, charts, signage, and pamphlets. These materials shall be used solely for the promotion and provision of Finunique Small Pvt Ltd Services and shall not be reused, transferred, or repurposed for any other activity.

1.9 Non-Interference with Other Partners – The Partner shall not encroach upon, interfere with, or disrupt the operational areas or business activities of any other Retailer, Distributor, or Partner appointed by Finunique Small Pvt Ltd. The Partner shall not undertake any act or

omission that may adversely affect the business operations, reputation, or commercial prospects of other Partners associated with the Company.

2. Definitions and Interpretation

Applicable Law: “Applicable Law” shall mean all laws, statutes, enactments, rules, regulations, notifications, circulars, directions, guidelines, and orders in force in India, as amended from time to time, which are applicable to the Services. This includes, without limitation, the guidelines, directions, and circulars issued by the Reserve Bank of India (RBI), the Payment and Settlement Systems Act, 2007, the Prepaid Payment Instruments (PPI) Guidelines, and any successor legislation or regulatory framework governing digital financial services.

Applicant – It means any individual who is 18 (eighteen) years of age or above, is using a valid and operational mobile phone connection, and who approaches an authorized Retail Partner, Distributor, or API Partner at approved outlet locations to avail the services provided by Finunique Small Pvt Ltd.

Company Rules – It defines the policies, rules, procedures, and guidelines issued by Finunique Small Pvt Ltd for its strategic partners, Retail Partners, Distributors, and API Partners, including codes of conduct, sales policies, management policies, and operational guidelines, as published on the Company’s website or platform and as amended from time to time.

Consumer – It means any end user or customer who avails or seeks to avail the services of Finunique Small Pvt Ltd through an authorized Retail Partner, Distributor, or API Partner, in accordance with the policies, terms, and guidelines of the Company, as amended from time to time.

Governmental Authority – Any central, state, or local government, ministry, department, statutory body, regulatory authority, or other entity exercising legislative, executive, regulatory, or administrative powers, having jurisdiction over the parties, their operations, or the transactions carried out under these Terms.

INR / Rs: Indian Rupees, the lawful currency of India.

Intellectual Property

All intellectual property rights used in connection with the services of Finunique Small Pvt Ltd (“Company Services”) shall remain the exclusive property of the Company and/or its licensors, as applicable. This includes, without limitation:

- Software, applications, manuals, program codes, instructions, specifications, processes, systems, and operational data;
- Trademarks, service marks, trade names, business names, logos, symbols, and branding elements;
- Promotional and marketing materials, advertisements, graphics, images, content, and the overall look and feel of the platform;
- Techniques, formulas, patterns, compilations, processes, inventions, methodologies, designs, and know-how used in relation to the Company Services.

Acceptance and Appointment as Retailer / Distributor / API Partner

By accepting these Terms and Conditions, the Partner hereby acknowledges and confirms their appointment as a Retailer, Distributor, or API Partner of Finunique Small Pvt Ltd ("Company"). This agreement governs the commercial, operational, and legal relationship between the Company and the Partner, and shall supersede all prior agreements, understandings, or arrangements, whether written or oral.

Any amendment, modification, or addition to this agreement shall be effective only if made in writing and expressly authorized by an official representative of the Company. The Partner agrees to comply with all such amendments and directions issued by the Company from time to time.

Merchant Rights

- Finunique Small Pvt Ltd may use Partner information to provide services and communicate on operational or transactional matters.
- The Company can monitor operations and audit transactions to ensure compliance with these Terms and Applicable Law.
- API Partners can access dashboards for API usage, transactions, and analytics.

Partner Responsibilities

The Partner shall provide accurate and up-to-date personal, contact, and payment information. Retailers are required to offer Company Services to Consumers and earn commissions based on their transactions. Distributors are responsible for onboarding, managing, and supporting their Retailers. In cases of payment disputes, chargebacks, or other financial issues, both Retailers and Distributors share joint responsibility for resolving them with Consumers. The Partner must comply with all Company Rules, Applicable Laws, and regulatory requirements, and must not engage in any fraudulent or unauthorized activities.

Distributor / Retailer / API Partner

3.1 Effective Date

These Terms and Conditions shall be effective from the date the Retailer, Partner, Distributor, or API Partner's application is accepted ("Effective Date"). The Partner is required to start business operations within 30 (thirty) days from this date, in full compliance with these Terms and Conditions.

3.2 Acknowledgement of Terms

The Partner confirms that they have read, understood, and accepted these Terms at the time of applying to Finunique Small Pvt Ltd for operating a retail outlet or providing API services. The Partner further acknowledges that they have carefully evaluated the obligations, responsibilities, and operational requirements under this agreement.

- The financial requirements for running the business
- The equipment needed to provide the Services
- The Services enabled or available in their area
- The risks associated with establishing and operating the Retail Outlet or API operations

3.3 Appointment of Partner

Finunique Small Pvt Ltd appoints the Partner to establish and operate a Retail Outlet or API operations at the address provided in the Application Form. Any change in address requires prior written consent from the Company, signed by an authorized representative (VP level or above).

3.4 Term of Appointment

The Partner's appointment shall remain valid until terminated ("Term"). Finunique Small Pvt Ltd may withdraw the appointment by giving 1 (one) month's written notice. However, in cases where the Partner breaches these Terms, the Company may terminate the appointment immediately.

3.5 Use of Designation

The Partner may identify themselves as an authorized Retailer, Distributor, or API Partner of Finunique Small Pvt Ltd. However, they shall not represent themselves as employees, officers, or official representatives of the Company, and cannot bind the Company in any manner.

3.6 Nature of Business

Finunique Small Pvt Ltd functions as a facilitator and distributor of services and products from various third-party service providers, allowing Partners to expand their distribution network. The Company does not hold ownership of the services or products offered by these third parties.

3.7 Service Availability and Responsibility

The Partner acknowledges that Finunique Small Pvt Ltd makes reasonable efforts to provide services and products at optimal quality. However, technology systems may experience interruptions due to maintenance, upgrades, or technical issues on the Company's side or the third-party service providers' side.

The Partner shall manage their operations keeping potential service interruptions in mind. API Partners have access to API reports, user reports, transaction reports, and relevant documentation for monitoring and operational purposes. Retailers earn commissions for services rendered, while Distributors are responsible for managing and supporting their Retailers. Any payment, chargeback, or financial dispute must be addressed by the Retailer and Distributor to ensure resolution with the Consumer.

Payments and Commissions

4.1 Non-Refundable Registration Fee

The Retailer / Distributor / API Partner shall deposit a non-refundable registration fee ("Registration Fee") as per the commercial terms defined by Finunique Small Pvt. Ltd. on or before the Effective Date.

4.2 Working Capital

The Retailer, Distributor, or API Partner shall maintain a working capital balance ("Working Capital") in the bank account designated by Finunique Small Pvt Ltd. This deposit will be interest-free. The Company may revise the required Working Capital from time to time through written communication, and the Partner must ensure that the balance is maintained at all times as per the updated requirements.

4.3 Working Capital Limit

The Partner will have a credit limit equal to their Working Capital balance maintained with the Company ("Credit Limit"). Transactions can only be processed up to this Credit Limit. If the limit is exceeded, the system will automatically block further transactions until the balance is

replenished. To increase the Credit Limit, the Partner must deposit additional funds with Finunique Small Pvt Ltd. The Company will not be liable for any transactions or losses if funds are deposited elsewhere without prior authorization.

4.4 Commissions and Margins

Retailers earn commission on each transaction or service provided. Distributors earn commission based on the transactions of their appointed Retailers. API Partners can view API usage, transaction, and revenue reports and earn commission as per the agreed commercial terms.

Commissions may be credited daily, monthly, or per transaction into the Working Capital account, or as notified on the Company's portal. Commission rates and margins may be updated from time to time via the portal, and such updates are deemed accepted by the Partner. Any chargeback, refund, or payment dispute must be resolved by the Retailer and Distributor; the Company is not responsible for these matters.

4.5 Prices and Discounts

All service prices, charges, fees, and discounts shall be set exclusively by Finunique Small Pvt. Ltd. Partners are not authorized to offer any discounts, subsidies, or incentives to customers without the Company's written approval. The Company reserves the right to modify prices or cancel any unauthorized sales or discounts recorded in the system.

4.6 Taxes

- All applicable taxes, including GST, VAT, service tax, and municipal or local taxes, shall be borne by the Partner.
- The Company may deduct taxes as required under applicable law while making payments.
- The Partner remains solely responsible for ensuring full compliance with all tax obligations.

4.7 Operational Costs

The Partner shall bear all expenses related to running the Retail Outlet or API operations, including but not limited to electricity, internet, telephone, staff salaries, travel, promotions, and other operational costs. The Company shall not be responsible for any such expenses.

4.8 Activity / Inactivity Charges

The Company may levy a monthly minimum charge, along with applicable taxes, which will be directly deducted from the Partner's Working Capital. The Partner agrees to pay such charges as communicated by the Company from time to time.

4.9 Set-off

The Company may deduct any amount owed by the Partner under these Terms from any payments or sums due to the Partner, and the Partner agrees to such adjustment.

5. Employees

5.1 Responsibility for Personnel

The Retailer / Distributor / API Partner is solely responsible for recruiting, employing, supervising, and managing all personnel engaged for providing services under this Agreement. This includes:

- Timely payment of wages, salaries, allowances, bonuses, and other benefits.

- Compliance with all labour laws, including EPF Act, ESI Act, Payment of Bonus Act, Payment of Gratuity Act, and any applicable amendments.
- Ensuring statutory contributions (PF, ESI, Professional Tax, Labour Welfare Fund, insurance, etc.) are correctly deducted and deposited within prescribed timelines.

5.2 Responsibility for Acts and Omissions

The Partner shall be fully responsible and liable for the actions, performance, negligence, or misconduct of its employees, representatives, contractors, or any personnel engaged by it.

- Any loss, damage, liability, or claim arising from such acts or omissions will be borne solely by the Partner.
- Finunique Small Pvt. Ltd. shall not be held responsible for any employment-related disputes, claims, or obligations of the Partner's personnel.
- The Partner shall indemnify and keep the Company indemnified against any claims or actions initiated by such personnel or Governmental Authorities in connection with their employment.

6. Exclusivity and Non-Compete

6.1 Exclusivity During Term

The Partner agrees that throughout the term of this Agreement, they will focus on promoting and providing Finunique Small Pvt. Ltd.'s services. Without prior written approval from the Company, the Partner shall not engage in any activity that conflicts with the Company's business interests..

6.2 Non-Compete Obligations

The Partner shall not, directly or indirectly, through itself or any other person or entity, engage in any of the following without prior written approval from Finunique Small Pvt. Ltd.:

- **Competing Services:** Market, sell, or provide services identical or substantially similar to those offered by the Company under BBPS, AEPS, DMT, or any other digital financial services.
- **Employee/Consultant Solicitation:** Attempt to hire or induce any employee, consultant, or agent of the Company to leave or work for the Partner or its affiliates.
- **Interference with Business Relationships:** Disrupt or interfere with the Company's relationships with customers, suppliers, service providers, or partners.
- **Unauthorized Branding:** Use any trade name, logo, trademark, or branding that is identical, similar, or misleadingly similar to the Company or its associated brands.

6.3 Breach Consequences

Any violation of the exclusivity or non-compete obligations shall be considered a material breach of this Agreement. In such a case:

- The Company may terminate the Agreement immediately without prior notice.
- The Partner shall be liable to compensate the Company for any direct or indirect loss, damage, cost, or claim arising from the breach.
- The Company may pursue legal remedies, including injunctions, restraining orders, or claims for damages under applicable law.

7. Intellectual Property

7.1 Ownership of Rights

No license, ownership, or rights under any patents, copyrights, trademarks, or other intellectual property of Techsync Pay, its affiliates, service providers, or third parties are granted to the Retailer, Partner, Distributor, or Super Distributor under this Agreement.

The Partner shall not acquire any interest, right, or title in the trademarks, trade names, logos, or other intellectual property of Techsync Pay or its affiliates. Use of such intellectual property on rubber stamps, visiting cards, letterheads, websites, advertisements, or any materials is strictly prohibited without prior written authorization from Techsync Pay.

7.2 Protection of Intellectual Property

The Retailer, Partner, Distributor, or Super Distributor shall protect Techsync Pay's logo, trade name, and trademark and must not use them in any unauthorized, misleading, or deceptive manner. This includes issuing receipts or acknowledgments that falsely suggest authorization or legitimacy.

If any unauthorized use occurs, the Partner shall:

- Indemnify and hold Techsync Pay harmless against any loss, damage, or liability arising from the infringement.
- Be subject to strict actions, including permanent deactivation of services, termination of this Agreement, and legal proceedings (civil or criminal) as deemed appropriate by Techsync Pay.

8.3 Security of POS User ID and Password

The Retailer, Distributor, or API Partner is solely responsible for keeping their User ID, login credentials, and passwords for Finunique Small Pvt. Ltd. services or related accounts confidential and secure.

All activities carried out using these credentials will be considered performed by the Partner, and they will bear full responsibility for any resulting consequences. Finunique Small Pvt. Ltd. will not be liable for any loss, damage, or claims arising from failure to maintain this confidentiality.

8.4 Unauthorized Access

The Retailer, Distributor, or API Partner must take all necessary precautions to prevent unauthorized or illegal use of Finunique Small Pvt. Ltd. services and to secure their accounts. In case of misuse, password leakage, or unauthorized access due to inadequate security by the Partner:

- Finunique Small Pvt. Ltd. will not be liable.
- Full responsibility rests with the Partner.

8.5 Fraud / Fake Transactions

Finunique Small Pvt. Ltd. will not be liable for any fraudulent, fake, or unauthorized transactions conducted using the Retailer's, Distributor's, or API Partner's login credentials or account.

Even though the Company uses strong security protocols, it cannot control misuse if sensitive credentials are shared or mishandled by the Partner.

The Retailer/Distributor/API Partner must:

- Follow all security guidelines issued by Finunique Small Pvt. Ltd.
- Ensure User IDs and passwords are never disclosed or shared.
- Accept full responsibility for any fraudulent transactions or financial losses resulting from negligence in securing their account.

9. Warranties and Covenants of the Retailer / Partner / Distributor

9.1 Obligations

The Retailer / Partner / Distributor warrants and undertakes that it shall:

- Professionally sell, market, distribute, and promote the Services of Finunique Small Pvt. Ltd., responding promptly to all customer inquiries.

- Cooperate with Company representatives and report any complaints, grievances, or feedback related to the Services.
- Operate in full compliance with applicable laws, this Agreement, and all Company guidelines, circulars, or instructions.
- Promote and protect the business interests and reputation of Finunique Small Pvt. Ltd.
- Avoid any acts or omissions that could cause financial loss, reputational harm, or damage to the Company.
- Employ sufficient qualified and trained personnel to provide Services effectively and ensure they comply with these Terms.
- Refrain from agreements or actions with customers or third parties that violate applicable laws or these Terms.
- Ensure employees, agents, or representatives follow professional conduct, dress code, and etiquette prescribed by the Company.
- Not deny Services to any person except as instructed in writing by the Company.
- Avoid unfair, unlawful, or unethical trade practices.
- Prevent unauthorized persons from entering the Retail Outlet or accessing Company systems, information, accounts, or records.
- Not allow any other individual or entity to conduct business at the Retail Outlet without prior written approval from the Company.
- Obtain and maintain all necessary approvals, consents, permits, licenses, registrations, and waivers required to perform obligations under this Agreement.

9.2 Seizure and Inquiry

The Retailer / Partner / Distributor shall be solely responsible for any seizure, confiscation, or inquiry by government or statutory authorities concerning any instruments, devices, or materials provided by Finunique Small Pvt. Ltd., if such action arises from actual or alleged illegal or unlawful activities.

9.3 Insurance Coverage

The Retailer / Partner / Distributor is solely responsible for obtaining and maintaining adequate insurance, including cash handling and transit insurance, to protect the business operations and assets related to Finunique Small Pvt. Ltd.

9.4 Consumer Information

The Retailer / Partner / Distributor must ensure that all consumer information such as contact details, phone numbers, and other credentials captured on Finunique Small Pvt. Ltd.'s platform is genuine, authentic, and obtained directly from the customer.

Under no circumstances shall the Partner use fake, inaccurate, or substituted information on behalf of any customer.

9.5 Access to Records

During the term of this Agreement, the Retailer / Partner / Distributor shall provide Finunique Small Pvt. Ltd., and any statutory authority, auditor, regulator, or duly authorized representative, unrestricted access to inspect, examine, audit, and/or take copies of all records, books, or documents relating to the Services.

9.6 Cooperation with Auditors

The Retailer / Partner / Distributor shall fully cooperate with internal and external auditors, regulators, and authorized representatives of Finunique Small Pvt. Ltd., and ensure timely and

accurate auditing of its records and data. The Partner further agrees to act in good faith and use best efforts to promptly rectify any deficiencies or irregularities identified during such audits within a reasonable time.

9.7 Performance of Responsibilities

The Retailer / Partner / Distributor shall diligently perform all responsibilities under this Agreement and make best efforts to maximize the sale of Finunique Small Pvt. Ltd. Services. The Partner shall at all times maintain a transparent, fair, and professional relationship with customers and, where applicable, with the Distributor under this Agreement.

10. Representations and Warranties

The Retailer / Partner / Distributor hereby represents and warrants to Finunique Small Pvt. Ltd. that it has been given full and sufficient opportunity to read, understand, and review this Agreement in detail and has been adequately informed of its rights, duties, and obligations arising hereunder. The Retailer / Partner / Distributor further confirms that it has independently evaluated the nature of the Services, including the financial requirements, commercial obligations, and risks involved in providing such Services, and enters into this Agreement with full knowledge and understanding.

The Retailer / Partner / Distributor represents that the execution, delivery, and performance of this Agreement does not and shall not violate, conflict with, or result in a breach of any agreement, contract, arrangement, covenant, or obligation to which it is a party or by which it is legally bound. It further confirms that it has full legal power, authority, and capacity to enter into and perform this Agreement, and that no additional consent, approval, or authorization from any third party or governmental authority is required for the valid execution and performance of this Agreement.

The Retailer / Partner / Distributor also represents that it is not subject to any judgment, decree, order, or restriction that would prevent or adversely affect the performance of its obligations under this Agreement. The entry into and performance of this Agreement shall not result in a violation of any applicable law, regulation, directive, or the Retailer's / Partner's / Distributor's constitutional or charter documents.

The Retailer / Partner / Distributor further confirms that it has obtained and shall maintain, throughout the term of this Agreement, adequate and valid insurance coverage to cover liabilities arising out of its operations, including but not limited to risks relating to cash handling, transactions, fraud prevention, and other obligations under this Agreement.

All representations and warranties provided by the Retailer / Partner / Distributor under this Agreement are in addition to, and do not limit or exclude, any warranties, obligations, or liabilities imposed under applicable law.

11. Miscellaneous

11.1 Governing Law

These Terms and Conditions shall be governed by and interpreted in accordance with the laws of India, as amended from time to time, and shall be subject to the exclusive jurisdiction of the competent courts at Delhi, India.

11.2 Dispute Resolution

The Parties shall make good-faith efforts to resolve any dispute, controversy, or claim arising out of or in connection with these Terms and Conditions through mutual discussions. If such resolution is not achieved, the dispute shall be referred to arbitration in accordance with the Arbitration and Conciliation Act, 1996, as amended from time to time. The arbitration shall be conducted by a sole arbitrator mutually appointed by the Parties. The seat and venue of arbitration shall be New Delhi, and the proceedings shall be conducted in the English language. The arbitral award shall be final and binding on the Parties.

For clarity, the Retailer / Partner / Distributor is engaged as a business associate of Finunique Small Pvt. Ltd. and not as a consumer. Accordingly, no claim shall be maintainable under the Consumer Protection Act, 2019. Any dispute arising between a Retailer and a Distributor under this Agreement shall be resolved by an authorized officer of Finunique Small Pvt. Ltd., whose decision shall be final and binding.

11.3 Non-Exclusive Appointment

The Retailer / Partner / Distributor acknowledges that the rights granted under this Agreement, including any limited right to use Finunique Small Pvt. Ltd.'s intellectual property, are non-exclusive in nature. Nothing in this Agreement shall restrict Finunique Small Pvt. Ltd. from appointing or engaging other Retailers, Partners, or Distributors to provide similar services in any territory or area.

11.4 Force Majeure

If Finunique Small Pvt. Ltd. is prevented, hindered, or delayed in the performance of any of its obligations due to circumstances beyond its reasonable control, including but not limited to natural disasters, fire, flood, war, strikes, lockouts, governmental restrictions, regulatory actions, system breakdowns, cyberattacks, or other similar events ("Force Majeure Event"), the performance of Finunique's obligations shall be suspended for the duration of such event. If the Force Majeure Event continues for more than thirty (30) days, Finunique shall have the right to terminate this Agreement without liability or compensation.

11.4 Force Majeure

If Finunique Small Pvt. Ltd. is prevented, delayed, or hindered in the performance of any of its obligations due to events beyond its reasonable control, including but not limited to natural disasters, fire, flood, war, strikes, lockouts, governmental or regulatory actions, system failures, cyber incidents, or similar events ("Force Majeure Event"), the performance of such obligations shall be suspended for the duration of the Force Majeure Event.

If the Force Majeure Event continues for a period exceeding thirty (30) days, Finunique Small Pvt. Ltd. shall have the right to terminate this Agreement without any liability or obligation to pay compensation.

11.5 Injunctive Relief

Finunique Small Pvt. Ltd. shall be entitled to seek injunctive relief, including interim or equitable relief, against the Retailer / Partner / Distributor in the event of any actual or threatened breach of this Agreement, in order to prevent irreparable harm to its business, reputation, goodwill, or intellectual property.

11.6 Relationship

The relationship between the Retailer / Partner / Distributor and Finunique Small Pvt. Ltd. is on a principal-to-principal basis. Nothing in this Agreement shall be deemed to create a partnership, joint venture, employer–employee, or principal–agent relationship. The Retailer /

Partner / Distributor shall not represent itself as an agent of Finunique Small Pvt. Ltd. or have any authority to bind the Company in any manner with any third party.

11.7 Notice

Any notice or communication under this Agreement must be in writing and delivered by:

- Hand delivery,
- Registered courier with acknowledgment, or
- Email with delivery confirmation.

Notices shall be sent to the addresses provided in the Application Form or any updated address communicated by either Party.

11.8 Assignment

The Retailer / Partner / Distributor shall not assign, transfer, or delegate its rights or obligations under this Agreement without the prior written consent of Finunique. Any unauthorized assignment shall be void. This Agreement shall be binding upon and inure to the benefit of the Parties, their legal heirs, successors, and permitted assigns.

11.9 Software

“Software” means any software, modules, APIs, or related documents provided by Finunique or its technology partners. The Retailer / Partner / Distributor is allowed to use the Software only for this Agreement, and this right is limited, non-transferable, and non-exclusive. No other use is permitted.

11.10 Software Restrictions

The Retailer / Partner / Distributor shall not:

- Give, sell, transfer, or share the Software with any third party.
- Modify, decompile, reverse-engineer, or tamper with the Software.
- Use Finunique’s Intellectual Property or proprietary technology without permission.

11.11 Severability

If any part of this Agreement is found to be invalid, illegal, or unenforceable, the rest of the Agreement will still remain in effect. The Parties will work together to replace the invalid part with a valid provision that reflects the original intent.

11.12 Amendment

Any changes or additions to this Agreement are valid only if written and signed by authorized representatives of Finunique Small Pvt. Ltd.

11.13 Waiver

If Finunique waives a breach of any term, it does not waive any other or future breach. Failure to enforce a provision at any time does not mean the provision is waived.

11.14 Third Parties

This Agreement does not grant any rights, benefits, or remedies to any third party, except the Parties and their permitted successors or assigns.

11.15 Further Actions

Each Party agrees to execute any additional documents or take any actions reasonably necessary to give effect to the provisions and intent of this Agreement.

11.16 Costs

The Retailer / Partner / Distributor shall bear all taxes, levies, duties, and expenses arising from or related to its appointment and performance of obligations under this Agreement.

11.17 Rights Cumulative

The rights, remedies, and powers provided under this Agreement are cumulative and in addition to any rights or remedies available under applicable law. Any single or partial exercise of a right shall not restrict or prevent the exercise of that or any other right in the future.

12. Change in Retailer / Partner / Distributor

12.1 Individual Retailer / Partner / Distributor

If the appointed Retailer, Partner, or Distributor is an individual, then in the event of their death, permanent incapacity, or inability to operate the Retail Outlet, the successor, legal heir, or authorized assignee may continue the operations. However, such continuation is allowed only after obtaining prior written approval from Finunique Small Pvt. Ltd. Without this approval, the successor or assignee has no legal right to operate the Retail Outlet under this Agreement.

12.2 Partnership Firm or Company as Retailer / Partner / Distributor

If the appointed Retailer, Partner, or Distributor is a partnership firm or a registered company, and there is a change in control of the entity, the following applies:

- **Partnership Firm:** Any change in the partnership structure (e.g., entry of a new partner, exit of an existing partner, or reconstitution of the firm).
- **Company:** Any change in management or majority shareholding that results in transfer of control.

In such cases, the successors, new management, or permitted assignees may continue operating the Retail Outlet only after obtaining prior written consent from Finunique Small Pvt. Ltd.

12.3 Mandatory Consent

In both situations above (individual or firm/company), Finunique Small Pvt. Ltd. reserves the sole right to approve or deny such continuation. This ensures that the operations of the Retail Outlet remain in accordance with the standards, compliance requirements, and business interests of Finunique Small Pvt. Ltd.

13. Termination

13.1 Expiry of Term

These Terms and Conditions shall automatically terminate upon the expiry of the contractual Term, unless Finunique Small Pvt. Ltd. provides written confirmation to renew or extend the Agreement.

13.2 Termination Without Cause

Either Party (Finunique Small Pvt. Ltd. or the Retailer/Partner/Distributor) may terminate this Agreement without assigning any reason, by providing a written notice of thirty (30) days to the other Party.

13.3 Termination by Finunique Small Pvt. Ltd. with Notice

Finunique Small Pvt. Ltd. may terminate the appointment of any Retailer/Partner/Distributor by providing thirty (30) days' written notice under the following circumstances:

- Breach of any provision of these Terms and Conditions which, if capable of remedy, is not rectified within fifteen (15) days of receiving written notice specifying the breach.
- Breach of any obligation relating to Finunique Small Pvt. Ltd.'s Intellectual Property.
- Repeated failure to deposit proceeds of daily transactions as required.

- Determination by Finunique that the Retailer/Partner/Distributor is not suitable or fit to continue operations.
- Unauthorized assignment or transfer of rights or obligations under this Agreement.
- Insolvency or bankruptcy proceedings, including voluntary or involuntary petitions, liquidation, receivership, or composition for the benefit of creditors.

13.4 Immediate Termination Without Notice

Finunique Small Pvt. Ltd. may immediately terminate the appointment of the Retailer/Partner/Distributor without prior notice in the following cases:

- Actions or defaults by the Retailer/Partner/Distributor that damage the reputation or goodwill of Finunique Small Pvt. Ltd.
- Situations covered under Force Majeure where continuation of operations is not feasible.
- Change in control or management of the Retailer/Partner/Distributor without prior written approval.
- Any event that materially affects the Retailer/Partner/Distributor's ability to perform its obligations under this Agreement.
- Conviction of the Retailer/Partner/Distributor, or its directors/partners/proprietors, for any criminal offence.
- The Retailer/Partner/Distributor is declared of unsound mind by a competent authority.

13.5 Termination with Short Notice

Finunique Small Pvt. Ltd. reserves the right to terminate the appointment of any Retailer/Partner/Distributor by providing seven (7) days' written notice, with or without assigning any reason.

13.6 Consequences of Termination

Termination under this clause shall not affect any other legal rights or remedies available to Finunique Small Pvt. Ltd. Upon termination, the Retailer/Partner/Distributor shall:

- **Settle Dues:** Clear all amounts payable to Finunique Small Pvt. Ltd. within fifteen (15) days from termination.
- **Return Company Property:** Immediately return all confidential information, documents, training materials, software, hardware, POP materials, and other property belonging to Finunique Small Pvt. Ltd.
- **Cease Use of Intellectual Property:** Stop using Finunique Small Pvt. Ltd.'s intellectual property, including trade names, software, signboards, banners, and marketing materials.
- **Remove Software:** Permanently delete or uninstall all software provided by Finunique Small Pvt. Ltd. and provide remote access to verify and disable installations.
- **Grant IT Access:** Allow Finunique Small Pvt. Ltd. access to IT systems for up to ninety (90) working days post-termination for compliance verification and software disabling.
- **Stop Marketing Activities:** Cease all promotion, marketing, and advertising activities related to Finunique Small Pvt. Ltd. and its services.

13.7 Obligations During Notice Period

After receiving a termination notice, or upon expiry of the Term, the Retailer/Partner/Distributor shall:

- **Adhere to Guidelines:** Strictly follow all systems, processes, and service guidelines during the final one (1) month of operation.

- **Redirect Customer Queries:** Forward all customer inquiries, complaints, or service requests directly to Finunique Small Pvt. Ltd.

13.8 Continuation of Services During Notice Period

If instructed by Finunique Small Pvt. Ltd., the Retailer/Partner/Distributor shall continue providing services throughout the notice period, until Finunique specifically directs otherwise.

13.9 Settlement of Accounts

Upon termination, both Parties shall reconcile and settle all outstanding financial obligations. The Retailer/Partner/Distributor acknowledges and agrees that it shall have no claim for compensation, damages, loss of profit, or any opportunity cost from Finunique Small Pvt. Ltd. after termination.

14. Indemnity

14.1 General Obligation

The Retailer/Partner/Distributor (the “Indemnifying Party”) irrevocably agrees to indemnify, defend, and hold harmless Finunique Small Pvt. Ltd., its affiliates, directors, officers, employees, agents, successors, and permitted assigns (the “Indemnified Parties”) from any and all claims, losses, damages (including indirect or consequential), liabilities, penalties, costs, and expenses (including reasonable legal and professional fees) arising from or in connection with:

- **Negligence or Misconduct** – Any negligent act, material omission, fraud, or willful misconduct by the Retailer/Partner/Distributor or its personnel resulting in:
 - Bodily injury, illness, or death;
 - Damage or loss of tangible or intangible property (including systems, software, data, or customer information);
 - Violation of any applicable law, regulation, or rule.
- **Breach of Laws or Regulations** – Any loss suffered due to failure of the Retailer/Partner/Distributor to comply with applicable laws, rules, regulations, or industry guidelines.
- **Unauthorized Representations** – Any loss or claim arising from providing false, misleading, or unauthorized statements to third parties, customers, or stakeholders on behalf of Finunique Small Pvt. Ltd.
- **Intellectual Property Infringement** – Any claim arising from infringement, misuse, or unauthorized use of Finunique Small Pvt. Ltd.’s intellectual property.
- **Employment and Labour Law Claims** – Any claim made by the Retailer/Partner/Distributor’s employees or personnel relating to employment disputes, salary, benefits, or non-compliance with labor or social security laws.
- **Misrepresentation of Warranties** – Any loss arising from misrepresentation, breach, or falsification of warranties, undertakings, or representations made under these Terms and Conditions.

14.2 Survival of Indemnity

The indemnity obligations under Clause 14 shall survive the termination or expiry of this Agreement and shall remain fully enforceable, regardless of the discontinuation of the business relationship between the Parties.

14.3 Right to Defend

Finunique Small Pvt. Ltd. reserves the right, at its sole discretion, to take over the defense of any claim, suit, or legal action against it. The Retailer/Partner/Distributor shall fully cooperate in

such defense and shall not settle, compromise, or resolve any claim without prior written consent from Finunique Small Pvt. Ltd.

15. Declaration

15.1 Accuracy & Acceptance

I/We hereby declare that all information provided to Finunique Small Pvt. Ltd. is true, correct, and complete to the best of my/our knowledge and belief. I/We confirm that I/We have carefully read, understood, and accepted all the terms and conditions governing my/our engagement as a Retailer / Partner / Distributor / Super Distributor with the Company. I/We agree to comply with these terms and conditions at all times and acknowledge that the Company may amend them from time to time. Any such amendments shall be binding on me/us for the duration of my/our association with the Company.

15.2 Acknowledgment of Access to Terms

I/We confirm that I/We have received a copy of these Terms and Conditions and have also reviewed the same on the official website of the Company (www.finunique.in). I/We undertake to stay informed of, and comply with, any amendments, modifications, or additions made by the Company from time to time, as published on the website.

15.3 Fees & Payment Channels

I/We acknowledge and fully understand that the one-time registration fee paid by me/us is non-refundable under any circumstances. I/We further confirm that no cash payments have been made to any employee, agent, or representative of the Company, and that all payments have been made solely through authorized channels as specified by the Company.

15.4 Pricing Display & Taxes

I/We undertake to always display the official rate list of charges applicable to domestic remittance and other services offered under this Agreement. I/We shall not, under any circumstances, overcharge or levy unauthorized fees on customers. I/We further undertake to comply with all applicable tax regulations, including Goods and Services Tax (GST), and acknowledge that I/We shall be solely responsible for the timely payment of such taxes.

15.5 Exclusivity: Prior Associations

I/We hereby declare that I/We have resigned from any prior associations with other Business Correspondents (BCs) or money transfer agencies. I/We further undertake not to engage with or enter into any agreement with such entities during the tenure of my/our association with FinUnique Small Pvt. Ltd.

15.6 Exclusivity: Ongoing Commitment

I/We further declare and undertake that I/We shall work exclusively with FinUnique Small Pvt. Ltd. in relation to domestic money transfer and related services. This commitment shall remain in force unless and until my/our association with the Company is lawfully terminated by FinUnique Small Pvt. Ltd., or I/We tender resignation in accordance with the terms of this Agreement.

15.7 Final Acceptance

I/We confirm that I/We have carefully read, fully understood, and expressly accept all the terms and conditions governing this Agreement. I/We undertake to comply with them in both letter and spirit at all times.

16. Communication Disclaimer

The Retailer / Partner / Distributor / Super Distributor expressly agrees and consents that FinUnique Small Pvt. Ltd. may communicate with him/her/it through various modes, including but not limited to voice calls, SMS, WhatsApp, email, mobile app notifications, video messages, or any other digital or innovative means of communication as deemed appropriate by the Company.

Such communications shall be considered an integral part of the services provided under this Agreement, and the Retailer / Partner / Distributor / Super Distributor shall not opt out of receiving these communications. The communications may include, but are not limited to, transactional messages, service updates, compliance-related instructions, promotional material, and advertisements, all of which shall be binding on the recipient.

17. Grievance Officer

In case of any grievances, queries, or complaints related to services, personal information, transactions, or compliance under this Agreement, the Retailer / Partner / Distributor / Super Distributor may contact the Company at the following details:

Grievance Officer

FinUnique Small Pvt. Ltd.

Plot No. 97, Dakshinpuri-I, Shrikishanpura, Sanganer, Jagatpura, Jaipur – 302017, Rajasthan

Email: info@finunique.in

Phone: 0141-4511098

The Grievance Officer shall acknowledge and address complaints within the timelines prescribed under applicable law, and all efforts will be made to resolve issues promptly and fairly.

18. Shipping and Delivery Policy

The Company shall make all reasonable efforts to deliver products/services within the estimated timelines provided at the time of transaction initiation. These timelines are indicative and shall not be construed as guaranteed unless explicitly confirmed in writing by the Company.

Any delivery charges shall be calculated based on the shipping address provided by the customer and collected as part of the transaction. In the event that delivery is not completed within seven (7) days from the estimated delivery date, the customer or Partner shall promptly notify the Company at info@finunique.in for appropriate resolution.

The Company shall not be liable for delays caused due to unforeseen circumstances, including but not limited to natural events, logistical issues, or regulatory restrictions.

19. Annual Maintenance Charges (AMC)

The Retailer / Partner / Distributor / Super Distributor agrees to pay an Annual Maintenance Charge (AMC) of INR 500/- per user per year (inclusive of GST).

The AMC shall be billed annually in advance and must be paid within the timelines specified by the Company. Failure to pay the AMC may result in suspension or termination of services until all outstanding dues are cleared.

The Company reserves the right to revise the AMC from time to time, and any such changes shall be notified to the Retailer / Partner / Distributor / Super Distributor through official communication channels.

20. Declaration of Acceptance

I/We hereby declare that I/We have read, understood, and voluntarily agreed to all the terms and conditions, declarations, grievance policy, shipping and delivery policy, and annual maintenance charge (AMC) obligations outlined in this Agreement.